



DECISION

Complaint No. : POS/700/KE-59/2023/Adv-Z

Name and address of the complainant : Mr. Riaz Masih,
House # B-113, Street # 30,
Bhittaiabad, Airport Road, Karachi.

Name of the Agency Complained against : Health Department

Name & Designation of Investigating Officer : Fasihuddin Khan,
Advisor 'Z'

Vetted by : ----

Subject : COMPLAINT REGARDING NON-PAYMENT OF ELEVEN MONTHS SALARIES TO THE COMPLAINANT

COMPLAINT

Mr. Riaz Masih filed a complaint on 25.01.2023 against the Health Department regarding non-payment of 11 months salaries to him after appointment as a Sanitary Worker in December 2020. He stated further that he was appointed during COVID-19 emergency and he performed his job diligently at Sindh Government Hospital, Liaquatabad but no salary was paid to him. He visited the office of Medical Superintendent (MS) of the said Hospital and the A.G. Sindh Office, several times in this connection but all in vain. He, therefore, solicited our intervention in the matter for redressal of his grievance.

PROCEEDINGS

2. The complaint was admitted u/s 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date), after condoning delay and receipt of mandatory Affidavit on Form 'A' and other relevant documents. However, service matters having been barred from the jurisdiction of this office u/s 9(2) of the Act 1991, the complaint was examined to determine that whether it constitutes maladministration or not on the part of the Agency concerned. Since the grievance of the complainant pertained to non payment of salaries to the complainant, it was established to be a case of maladministration falling within the purview of this Institution.

3. The matter was referred to the MS, SGH, Liaquatabad, Karachi for preliminary report vide this office letter dated 31.05.2023. In response, he submitted vide letter dated 07.06.2023 that Mr. Riaz Masih was appointed for 89 days on 10.12.2020, but he remained absent in the first quarter from December 2020 to February 2021 as per attendance sheet. He added that the complainant performed his job in the 2nd quarter, and his salary bill was submitted to A.G. Sindh, Karachi Office, but the said office returned the bill unpassed with remarks

that his name was not mentioned in the first appointment list. Thereafter, letter was sent to the Secretary, Health Department, Government of Sindh for extension of service on 09.04.2022 and 09.06.2022, but it was not responded. Moreover, the MS terminated all the employees who were continuously absent from duty and the funds were surrendered to the Government.

4. A copy of the Agency's above report was sent to the complainant for his rejoinder vide this office letters dated 20.06.2023 and 21.08.2023. In response, the complainant submitted vide letter dated 20.09.2023 that the Agency's report was incorrect and he had performed his duty regularly from the beginning.

5. In order to resolve the issue, hearing was fixed on 12.10.2023 which was attended by both the parties and heard in detail. The representative of the Agency stated that since the complainant was absent during the first quarter from 12.12.2020 to 28.02.2021, his claim was admitted to the extent of 8 months salaries which needs to be paid to him by the Health Department. On the other hand, the complainant could not produce any evidence to prove his attendance during the first quarter.

6. After constant follow up, correspondence with the concerned officers and hearings on various dates, finally a letter dated 16.09.2025 sanctioning an amount of Rs.198,333/- in favour of the complainant as arrears of his salary was issued by the Finance Department. Thereafter, the complainant appeared on 25.11.2025 and submitted his written statement that his grievance has been resolved. While thanking this Institution, he requested to close the complaint.

DECISION

7. In view of the above, the complaint is disposed of as redressed.

Given under my hand and seal of office.



Sd/-
(MUHAMMAD SOHAIL RAJPUT)
 Sitara-e-Imtiaz - PAS
 Ombudsman, Sindh

Karachi, dated

30th April, 2026